



Appeal Decision

Site visit made on 4 August 2026

by Nick Davies BSc(Hons) BTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6005328

Land opposite Rose Meadow, Carnkie, Helston TR13 0DN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr and Mrs Johnson against the decision of Cornwall Council.
 - The application Ref is PA25/08915.
 - The development proposed is construction of 6-9 dwellings.
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Decision

1. The appeal is allowed and permission in principle is granted for construction of 6-9 dwellings at Land opposite Rose Meadow, Carnkie, Helston TR13 0DN in accordance with the terms of the application, Ref PA25/08915, and the plan submitted with it.

Preliminary Matters

2. The proposal is for permission in principle. The Planning Practice Guidance (the PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle, and the second (technical details consent stage), is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted¹. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.
4. An applicant can apply for permission in principle for a range of dwellings by expressing a minimum and maximum number of dwellings as part of the application. In this instance, permission has been sought for a minimum of six and a maximum of nine dwellings.
5. The site lies in close proximity to the Fal and Helford Special Area of Conservation (the SAC). The Cornwall Council European Sites Mitigation Supplementary Planning Document (July 2021) (the SPD) explains the importance of the SAC and its qualifying features. It identifies that recreational activity within it, resulting from additional residential development nearby, has the potential to disturb this habitat, resulting in a likely significant effect on its qualifying features. The SPD provides a strategic scheme, and sets out a series of measures, to mitigate the effect of this

¹ The PPG Paragraph: 012 Reference ID: 58-012-20180615

increased recreational pressure. For small developments, this involves securing a financial contribution to the strategic mitigation plan through each application.

6. The PPG explains that conditions and/or planning obligations cannot be secured at the permission in principle stage, only at the technical details consent stage. However, in this case, the evidence indicates that a signed and dated undertaking under s111 of the Local Government Act 1972 has been submitted. This provides an undertaking to make the appropriate financial contribution to the strategic plan to mitigate the effect of the additional dwellings. The payment has already been made, so the mitigation requirements in the SPD have been secured.
7. Any application for technical details consent must specify the permission in principle to which the technical details consent relates. There is, therefore, a direct link between the mitigation payment, related to the permission in principle stage for this scheme, and the process of submitting and considering any subsequent technical details, including its effects on the SAC.
8. Natural England has endorsed the measures proposed in the SPD and, following the completion of the s111 undertaking and submission of the related payment, the Council is satisfied that the effect of the development on the SAC has been addressed. In these circumstances, I am satisfied that the proposal, either alone or in combination with other schemes, would have no adverse effect on the integrity of the SAC. Consequently, when undertaking an appropriate assessment, I am satisfied that the scheme would accord with the requirements of the Conservation of Habitats and Species Regulations 2017. The proposal would not, therefore, be habitats development, so can be considered under the permission in principle application procedure.
9. On 17 August 2026, the Government published a new National Planning Policy Framework (the Framework). Both parties have had the opportunity to comment on its implications for their respective cases. I have considered the new Framework in my determination of the appeal.

Main Issue

10. The main issue is whether the site is suitable for residential development, having regard to its location, the proposed land use, and the amount of development.

Reasons

11. Policy 2 of the Cornwall Local Plan Strategic Policies 2010 – 2030 (adopted 2016) (the Local Plan) sets out the spatial strategy for development. It seeks to maintain the dispersed development pattern of Cornwall, providing homes and jobs based on the role and function of each place. Based on this strategy, Policy 3 defines how development will be accommodated, with growth focussed on identified main towns. However, it also supports housing growth within or adjoining smaller settlements through rounding off; development of previously developed land (PDL); infill schemes that fill a small gap in an otherwise continuous built frontage; or rural exception sites. In this regard, it is not disputed that Carnkie is a settlement.
12. Carnkie is linear in form, with continuous development along the northern side of the road. Whilst there are buildings to the south of the road, they are scattered, and do not so closely follow the line of the highway. The appeal site lies on the

south side, opposite the western extremity of the linear development to the north. The site slopes down away from the bungalows opposite, and is separated from them by the road, a hedgerow, and trees. There is a loose scatter of buildings to the southeast, but these are detached from the settlement. To the east, there is no other development close to the south side of the road for a considerable distance. Consequently, although the site lies inside the road sign marking the edge of the village, it is surrounded on three sides by undeveloped land, and is physically and visually detached from the development on the northern side of the road. It is not, therefore, within the settlement.

13. However, the bungalows opposite the site are part of the continuous line of development on the northern side of the road, and are therefore part of the settlement. Case law² has held that an intervening road does not prevent land from being immediately adjacent to a settlement. For the purposes of Policy 3, therefore, the site adjoins Carnkie.
14. The proposal is not put forward as a rural exception site, so support for residential development under Policy 3 is dependent on the proposal comprising infill, rounding off, or development of previously developed land (PDL) immediately adjoining the settlement. The appellant does not contend that the proposal comprises infill or rounding off, and I have no reason to come to a different conclusion. Furthermore, on the evidence before me, the site does not fall within the definition of PDL in the glossary to the Framework. There is, therefore, no support for the proposal under this strand of Policy 3.
15. Policy 21 of the Local Plan encourages the best use of land in sustainable locations, through the use of PDL, contaminated land, or by increasing building density. In this case, the land is not contaminated or PDL, and the proposal would introduce entirely new development, rather than increasing building density. Consequently, the proposal does not derive support from Policy 21.
16. Paragraph 2.33 of the Local Plan says that land outside the physical boundaries of existing settlements is defined as open countryside. In the absence of support from Policies 3 and 21, Policy 7 says that the development of new homes in the open countryside will only be permitted where there are special circumstances, none of which apply in this case. Consequently, the proposal would conflict with the spatial strategy set out in Policies 2, 3, 7 and 21 of the Local Plan.
17. Although the site is adjacent to the settlement, it is visually separated from the built development opposite by the road, hedgerow, trees, and the sloping topography. Consequently, it appears to be a part of the surrounding undeveloped landscape that provides an attractive rural setting for Carnkie. The proposal would introduce built development into this area of countryside, with only a tenuous visual association with the existing settlement. Approaching the site from the west, the development would be visible before any other buildings in the settlement, so would appear as an isolated group of buildings in the countryside, resulting in harm to the predominantly rural character and appearance of the immediate surroundings. However, the level of harm would be moderate as, in other views the site is seen in the context of the existing settlement. Furthermore, the site is not prominent in the wider landscape. Nevertheless, the moderate harm results in conflict with Policies 12 and 23 of the Local Plan, and Policy C1 of the Climate

² William Corbett v Cornwall Council v Dymrna Wilson [2022] EWCA Civ 1069

Emergency Development Plan Document 2023 (the CEDPD), which seek to maintain and enhance Cornwall's distinctive natural environment.

Other Matters

18. There is no evidence that the site is of particular importance to any protected species, so the impact of the development on biodiversity is not an issue to be considered at the permission in principle stage. This is a matter to be considered as part of the technical details consent stage, which will be subject to the statutory Biodiversity Net Gain requirements.
19. In the absence of any obvious constraints, means of access to the site is also a matter to be considered at technical details stage. As the site lies within Flood Zone 1, it is not at significant risk of flooding. The detailed drainage proposals that would be necessary to avoid increased off-site flood risk are also a matter to be considered at technical details stage.
20. It is suggested in representations that there may have been mining operations close to, or under the site. Any necessary investigations to demonstrate the extent of the workings, and any required remedial action, would need to be submitted with any future application for technical details consent.

Planning Balance

21. The proposal would conflict with the spatial strategy of the development plan and with its policies that seek to protect the distinctive natural environment of Cornwall. The proposal would, therefore, conflict with the development plan as a whole. However, it is not disputed that the Council cannot currently demonstrate a five-year supply of deliverable housing sites. The most recent evidence indicates that the supply is 3.9 years, so the shortfall is considerable. In these circumstances, the Framework's approach to determining proposals for development outside settlements, as set out at Policy S5 1.j, is a material consideration of critical importance. This Policy advises that residential development that is physically well-related to an existing settlement, and is of an appropriate scale, should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
22. Paragraph 2 of Annex A of the Framework says that development plan policies should not be given reduced weight simply because they were adopted prior to publication of the Framework. The spatial strategy set out in Policies 2, 3, 7 and 21 of the Local Plan is consistent with the Framework's aims to direct development to the most appropriate and sustainable locations. However, it is not delivering a sufficient supply of homes in accordance with the other aims of the Framework. Consequently, I can only afford moderate weight to the conflict with the development plan policies governing the spatial location of housing.
23. Policies 12 and 23 of the Local Plan, and Policy C1 of the CEDPD are generally consistent with the Framework's aims to achieve well-designed places and to conserve and enhance the natural environment. The proposal would result in moderate harm to the character and appearance of the area. I am mindful, however, that meeting the shortfall in housing provision is unlikely to be achieved without some visual impacts. In this case, the site does not lie within a protected landscape, and there is scope to minimise the harm through the technical details

consent process. Consequently, I give limited weight to the conflict with Policies 12 and 23.

24. Set against the harm that I have identified, there would be benefits associated with the development. It would support the Framework's objective of delivering a substantial increase in the supply of homes. In view of the current evidenced unmet need for housing, Policy HO7 of the Framework requires that substantial weight should be given to this benefit. Furthermore, the scale of the proposal would exceed the threshold for an affordable housing contribution under Policy 8 of the Local Plan. This could be secured at technical details stage, which is an additional, and significant benefit of the scheme, which would help to meet the Council's stated objective of achieving a step-change in affordable housing provision³.
25. There would also be economic benefits associated with the development, through the creation of jobs during the construction phase. Thereafter, residents would contribute to the local economy through ongoing spending and support for local services. The scale of the development means that these benefits carry modest weight.
26. When assessed against the policies in the Framework, taken as a whole, the adverse impacts of the proposal do not significantly and demonstrably outweigh the benefits. Therefore, despite the conflict with the development plan, material considerations indicate that permission in principle should be granted.

Conditions

27. The PPG makes it clear that it is not possible for conditions to be attached to a grant of permission in principle, whose terms may only include the site location, the type and amount of development.

Conclusion

28. The proposed development would conflict with the development plan, but material considerations, including the Framework, indicate that a decision should be made other than in accordance with it. For the reasons given above the appeal should be allowed.

Nick Davies

INSPECTOR

³ Securing Homes for All: A Plan to respond to Cornwall's Housing Crisis (December 2021)